

24STCV34475 24STCV34475

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-17

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Case Number: 24STCV34475 Hearing Date: September 17, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

17, 2026 TRIAL

DATE: January 18, 2028

CASE: Sven Altmetz v. Ford Motor Company, et al.

CASE NO.: 24STCV34475

DEFENDANT

FORD MOTOR COMPANY'S MOTION TO COMPEL PLAINTIFF SVEN ALTMETZ'S DEPOSITION AND REQUEST FOR MONETARY SANCTIONS AGAINST PLAINTIFF AND STRATEGIC LEGAL PRACTICES, APC, JOINTLY AND SEVERALLY IN THE AMOUNT OF \$2,740.00

MOVING PARTY: Defendant

Ford Motor Company

RESPONDING PARTY: Plaintiff Sven

Altmetz

I. BACKGROUND

On December

30, 2024, Plaintiff, Sven Altmetz, commenced this Song-Beverly action against Defendants, Ford Motor Company ("Ford") and South Bay Ford Lincoln.

On June 15, 2026, Ford filed this motion to compel Plaintiff to appear for deposition. Ford requests sanctions against Plaintiff and his counsel of record.

On September 3, 2026, Plaintiff filed an opposition.

On September 4, 2026, Ford filed a reply.

The motion may be moot.

Plaintiff states he has agreed to appear for deposition on September 16, 2026. The court will hear from the parties whether Plaintiff appeared for the deposition. The court proceeds to consider only the request for sanctions. (See *Do v. Superior Court* (2003) 109 Cal.App.4th 1210.)

II. LEGAL STANDARD

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)~~~~~

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.~~~~~

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“If a motion under [Code of Civil Procedure section

2025.450] subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”<sup>2</sup> (Code Civ. Proc., § 2025.450, subd. (g)(1).) 222

### III. DISCUSSION

Here, the court finds monetary sanctions are warranted. Ford properly noticed Plaintiff’s deposition on four occasions. Plaintiff asserted only one valid objection to the deposition notices based on attorney illness. Further, Plaintiff waited to provide alternative deposition dates two months after this motion was filed. Accordingly, the court will impose sanctions against Plaintiff and his counsel of record in the requested sum of \$2,176.75.

### IV. CONCLUSION

The court is inclined to impose sanctions against Plaintiff and his counsel of record, jointly and severally, in the sum of \$2,176.75 to be paid within 30 days of this order. However, the court holds in abeyance this sanctions order pending a report on whether Plaintiff appeared for deposition.

Dated: September 17, 2026

Brock T. Hammond

Judge of the Superior Court